

# Policy on Leave V1.0



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# Policy

|                        | Prepared by                 | Reviewed by                 | Approved by                 |
|------------------------|-----------------------------|-----------------------------|-----------------------------|
| <b>Name</b>            | Purna Samhitha<br>Gudipudi  | Syeda Bushra Sultana        | Rajesh Tatineni             |
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| <b>Version History</b> |                             |                             |                             |
| V 1.0                  | Policy on Leaves            |                             |                             |
| V 1.1                  | Update on EL encashment     |                             |                             |

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## 1. Objective

- The leave policy details out different types of leave and absence situations and aims to ensure fair and consistent treatment to all employees.

## 2. Scope

- This policy is applicable to all the permanent and temporary employees of ValueMomentum India.

## 3. Policy Outline

- The purpose of this policy is to make employees aware of the various types of leaves they can avail and to outline the processes to be followed for requesting and approval of such leaves. The various types of leaves covered in this policy are:
  - a) Casual Leave/ Sick Leave
  - b) Earned Leave
  - c) Maternity Leave
  - d) Leave for Adoption.
  - e) Leave for Miscarriage.
  - f) Leave for Tubectomy Operation
  - g) Leave for illness arising out of pregnancy, delivery, premature birth of child
  - h) Leave without Pay.
- The policy also provides an outline for the number of leaves an intern or contractor is eligible for and process for any employee who is deployed to onsite for any long-term assignment.
- Leaves policy calendar year is from 1st of January to 31st of December of any given year.
- For all the special leaves (c,d,e,f,g) calculation of eligibility in the HRMS portal will be basis number of working days, for Eg: 26 weeks of leaves will be displayed as 139 working days.

## 4. Types of leaves and Procedures to avail leaves

### 4.1. Permanent employee

#### 4.1.1. Sick / Casual Leaves

- 12 CL/SL will be credited to all the employees at the beginning of the year.
- Any employee joining in the interim of the year, SL/CL will be prorated based on their date of joining.  
Ex: If you join on 1<sup>st</sup> March, you will 10 CL/SL credited to your account.
- A maximum of two working days can be availed as Casual leaves in a month.
- In case of sick leave exceeding for more than 3 days, employee must submit a medical certificate from a registered medical practitioner to the HR.
- For all planned leaves employees are required to raise appropriate request in HRMS portal well in advance.
- Casual/ Sick Leave can be availed for half day and can also be clubbed with EL's.
- Un-availed casual leave and sick leave balance will automatically lapse at the end of the year and cannot be en-cashed.
- Any employee leaving the organization between the calendar year and any CLs/SLs availed in excess of the prorated eligibility (1 CL/SL per month), will be recovered in Full & Final settlement.

#### 4.1.2. Earned Leaves

- All employees are eligible for 12 EL's in a year, each of these EL's are credited on monthly basis.
- Any employee joining in the interim of the year, EL's eligibility is prorated accordingly and for employees joining interim of the month, it will be credited on prorated basis.
- Any unused earned leave balance will be carried forwarded to the next year which can be accumulate up to 30 EL's.
- If EL's are accumulated above 30 with no further utilisation, then the basic pay for the additional leaves that are earned month on month will be paid on quarterly basis in Jan, April, July, October.  
Ex: An employee is at 30 days leave balance in Jan and did not encash any leaves or availed any Earned leaves in Jan-Feb-Mar month then these 3 months leaves (3) will be paid in April payroll and same process is followed for the respective quarters.
- At the time of separation from the services of the company for any reason, salary in lieu of un-availed leaves will be paid only upon service completion of one year and if the employee has served entire notice period.

#### 4.1.3. Maternity Leave

- All the female employees are eligible for maternity leave where she has worked in the company for a period of at least 90 days immediately preceding the date of the expected delivery.
- The maximum period for which the employee is entitled for maternity benefit is 26 weeks, whether taken before or after childbirth. However, she cannot take leave earlier than eight weeks before her expected delivery date.
- Maternity leave if extended for more than available Sick leaves, will be treated as Loss of pay.
- This benefit can be availed in respect of delivery for first two children only.
- For women who are expecting after having 2 children, the duration of paid maternity leave shall be 12 weeks (i.e., 6 weeks pre and 6 weeks post expected date of delivery).
- Employees should inform their Managers and HR at least 2 months in advance before availing the leave, excluding emergency situations.

#### 4.1.4. Leave For Miscarriage

- All the female employees are eligible for this leave where she has worked in the company for a period of at least 90 days.
- In the event of miscarriage, an employee can avail leave for six weeks from the date of miscarriage.
- Request for miscarriage leave must be supported by necessary medical documentation and should be shared with the HR before going on the leave.

#### 4.1.5. Leave For Adoption

- Every woman employee who legally adopts a child below the age of 3 months or a commissioning mother shall be entitled to 12 weeks of adoption leave, from the date the child is handed over to the adopting mother or the commissioning mother, as the case may be.
- Every woman employee who legally adopts a child above the age of 3 months shall be entitled to 6 weeks of Adoption leave, from the date the child is handed over to the adopting mother.
- Adoption leave must be availed without any break (in continuation) and can be availed with any other type of leave accrued to the employee.
- Employee must give 2 weeks prior notice to her manager and HR before availing the Adoption leave.
- Application for adoption leave must be supported by necessary documentation.

- The benefit can be availed in respect of adoption for first two children only.

#### **4.1.6. Leave for tubectomy operation**

- In case of tubectomy operation, a woman shall, on production of such proof as may be prescribed, be entitled to leave with pay at the rate of maternity benefit for a period of two weeks immediately following the day of her tubectomy operation.

#### **4.1.7. Leave for illness arising out of pregnancy, delivery, premature birth of child**

- Any woman employee suffering from illness arising out of pregnancy, delivery, premature birth of child shall, on production of such proof as may be prescribed, be entitled to leave with pay at the rate of maternity benefit for a maximum period of one month.
- In case of Extended ML the employee is required to inform the respective HR and LOB in writing along with required documents at least 2 weeks before.

#### **4.1.8. Leave without Pay**

- If the employee needs to avail leave after exhausting all the casual leaves and earned leaves, he/she would be on leave without pay.
- Leave without pay is used in exceptional cases (long term sickness or any other emergency) and can be availed only at the discretion of the manager, LOB & HRBP.
- In case the employee is on leave for more than two consecutive working days (and has a casual leave balance, but no earned leave balance), the leave would be treated as leave without pay.
- If weekends/Company Holidays are falling between LWP days applied or if it is auto deducted based on non-availability, such weekends/Holidays will also be considered and treated as LWP  
Ex : if an employee applies one LWP on Friday and another LWP on Monday, in such case Saturday and Sunday will be included in LWP, equalling 4 as the total count of LWP applied.
- While in the HRMS system, only working days will be counted as LOP, but LOP if any on weekends, will be accounted during payroll and payslips will reflect total number of actual LOP's used.

### **4.2. Leave eligibility for Temporary employees**

- All direct, 3rd party contractors, GIG workers and interns are covered under temporary employment.
- All the temporary employees are eligible for 1 Sick/Casual Leave in a month.

- Maternity Leaves shall be applicable as per section 4.1.3 for direct contractor employees of Valuemomentum

## 5. Responsibilities

### 5.1. Employee:

- To be cognizant of different types leave and their eligibility and adhering to the process
- Actively communicating in a timely manner with their supervisor about their leave request and raising them on the portal
- Providing appropriate medical proofs in support of leave, wherever required.
- Be responsible in balancing work and impact upon co-workers with personal considerations in scheduling leave.
- Any extension of leaves should be informed prior and appropriate approval from HR Business partners should be taken.

### 5.2. Managers:

- Ensuring that all the leave requests approval are critically evaluated and dealt with in accordance with the policy and the relevant procedure.
- To seek advice and inform HRBP in case of ML, LWP, long leaves, as necessary.
- To monitor the leaves of all employees reporting to them and inform the HR BP in case of unsatisfactory attendance.

### 5.3. HR Team:

- Ensuring that leave requests are dealt with in accordance with this policy and the relevant procedure.
- Communicating any changes in the leave structure as applicable.
- Review the submitted proof and coordinate for approvals on long leaves, extension of leaves as and when required.

## Annexure

| Type of Leave      | Total Eligible Leave | HRMS (no.of days excluding weekends) |
|--------------------|----------------------|--------------------------------------|
| Casual/ Sick Leave | 12 per year          | 12 per year                          |



|                                                                                |                                                    |                                                                                  |
|--------------------------------------------------------------------------------|----------------------------------------------------|----------------------------------------------------------------------------------|
| Earned Leave                                                                   | 12 per year                                        | 12 per year                                                                      |
| Maternity Leave                                                                | 26 Weeks                                           | 139 working days                                                                 |
| Leave for Miscarriage                                                          | 6 Weeks                                            | 31 working days                                                                  |
| Leave for Adoption                                                             | 6 – 12 weeks based on the age of the child adopted | 65 working days for age below 3 months<br>42 working days for age above 3 months |
| Leave for tubectomy operation                                                  | 2 weeks                                            | 11 working days                                                                  |
| Leave for illness arising out of pregnancy, delivery, premature birth of child | 1 month                                            | 22 working days                                                                  |
| Extended Maternity Leave                                                       | 90 days                                            | 65 working days                                                                  |

## Frequently Asked Questions (FAQ's)

### 1. Are leaves credited on calendar year basis or financial year basis?

A: Leaves are credited to an employee's account as per calendar year i.e. from 1st January to 31st December.

### 2. How many Casual Leaves/ Sick Leave are employees eligible for in a year?

A: The employees are eligible for 12 Sick or Casual Leaves in a year.

### 3. How many CL/SL's will an employee be eligible for if he/she joined in between the year?

A: If an employee joins the organization in between of the year then the leaves will be prorated according to their joining month.

### 4. What if an employee joins after 15th of any given month?

A: Any employee who joins ValueMomentum after 15th of any given month then leaves will be prorated as per date of joining

### 5. Can an employee carry forward his/her unused CL/SL balance to next year?

A: No, an employee cannot carry forward his/her unused CL/SL to the next year. Any unused CL/SL balance will be lapse at the end of the year.

**6. What if an employee has consumed all the available CL/SL's at the beginning of the year and has resigned in the second half of the year?**

A: Any employee leaving the organization between the calendar year and any CLs/SLs availed in excess of the prorated eligibility (1 CL/SL per month), will be recovered in Full & Final settlement.

**7. How will an Earned Leave be credited to an employee account?**

A: Earned Leave will be credited to an employee account upon completion of each month.

**8. Can an employee carry forward his EL Balance to next year?**

A: Yes, an employee can carry forward his unused EL's to next year.

**9. How many EL's can an employee accumulate?**

A: An employee can accumulate up to 30 EL's

**10. What if an employee has reached the 30 EL's limit?**

A: Once an employee reaches 30 Earned Leave balance, they must either utilize or it will get auto encashed by quarter end.

**11. Can an employee club EL's with CL's/SL's?**

A: Yes, an employee can club EL's with CL/SL's.

**12. Are all female employees allowed for Maternity Leave?**

A: Yes, all permanent female employees are allowed for Maternity Leave provided they have worked with the organization for a period of 90 days preceding the date of the expected delivery.

**13. From how many week prior to the expected date of delivery can a female employee take Maternity Leave?**

A: A female employee is eligible to take maternity leave atleast 8 weeks prior from her expected date of delivery.

**14. What if a female employee wants to extend their Maternity Leave?**

A: If a female employee who wants to extend her Maternity Leave then has to let her HRBP and LOB know atleast 2 weeks prior to the actual date of resuming back to office and such leave are subjected to approval.

**15. For how many kids can an employees avail 26 weeks ML?**

A: An employee can avail 26 weeks of ML for the upto 2 kids.

**16. How many weeks can a female employee avail ML in the case of 3rd pregnancy?**

A: For women employees who are expecting after having 2 children, the duration of paid maternity leave shall be 12 weeks (i.e., 6 weeks pre and 6 weeks post expected date of delivery).

**17. What is the leave policy an employee can avail in case of adoption?**

A: a) Every woman employee who legally adopts a child below the age of 3 months or a commissioning mother shall be entitled to 12 weeks of adoption leave, from the date the child is handed over to the adopting mother or the commissioning mother, as the case may be.

b) Every woman employee who legally adopts a child above the age of 3 months shall be entitled to 6 weeks of Adoption leave, from the date the child is handed over to the adopting mother.

**18. What if an employee has opted for LWP both on Friday as well as Monday?**

A: If an employee applies one LWP on Friday and another LWP on Monday, in such case Saturday and Sunday will be included in LWP, equaling 4 as the total count of LWP applied. While system will not take this into account, but it will be readjusted from backend and the correct balance will reflect in next subsequent month.

**19. How many leaves are Contractors/ Interns eligible for?**

A: Contractors/ Interns are eligible for 1 CL/SL in a month.